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Provision of January 24, 2024
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THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting held today, attended by
Prof. Pasquale Stanzione, president, Prof.
Ginevra Cerrina Feroni, vice president, Dr.
Agostino Ghiglia and Attorney Guido Scorza, members, and
Secretary General Fabio Mattei;

HAVING REGARD TO Regulation (EU) 2016/679 of the European Parliament
and of the Council of April 27, 2016, concerning
the protection of natural persons with regard to
the processing of personal data, as well as the free
movement of such data and repealing Directive
95/46/EC, "General Data Protection Regulation" (hereinafter, "Regulation");

HAVING REGARD TO Legislative Decree No. 196 of June 30, 2003, containing
"Code regarding the protection of personal data,
providing provisions for the adaptation
of the national legal system to Regulation (EU)
2016/679 of the European Parliament and of the Council, of
April 27, 2016, concerning the protection of
natural persons with regard to the processing of personal data,
as well as the free movement of such data and repealing Directive 95/46/EC (hereinafter
"Code");

HAVING REGARD TO Regulation No. 1/2019 concerning
internal procedures of external relevance,
aimed at carrying out the tasks and
exercising the powers entrusted to the Guarantor for the
protection of personal data, approved by
resolution No. 98 of April 4, 2019, published in
G.U. No. 106 of May 8, 2019 and on www.gpdp.it, doc.
web n. 9107633 (hereinafter "Guarantor Regulation
No. 1/2019");

HAVING REGARD TO the documentation on file;

HAVING REGARD TO the observations made by the Secretary
General pursuant to Article 15 of the Guarantor's
Regulation No. 1/2000 on the organization and
functioning of the office of the Guarantor for the
protection of personal data, doc. web n. 1098801;

REPORTING Prof. Ginevra Cerrina Feroni;

PREMISE

1. Introduction

Following a report, it was learned that on a
Facebook page related to the Municipality of XX (XX)
(<https://...>), on date XX, a post was published
accompanied by a map "from which it can be inferred almost
the residences of families with individuals affected by
coronavirus and in quarantine," marked by

red or yellow dots.

2. The investigative activity

During the checks carried out to ascertain the reported matter, the Authority found that on the same Facebook page of the Municipality, among the numerous communications related to Covid-19, it was also found that identifying data of the interested parties had been published - although obscured in a manner that was not complete or adequate - in the following posts:

- a) post of XX: concerning a screenshot of the email from the ASL of Caserta addressed to the Mayor communicating the results of the swabs performed on "XX";
- b) post of XX: concerning a note from the ASL of Caserta, containing the negative result of the swab performed on an individual residing in the Municipality, from which, however, the address ("XX, XX") and the gender of the patient ("XX") can be inferred;
- c) post of XX: concerning a communication from the ASL regarding the discharge of a patient, with negative results of the swabs, partially obscured, from which, upon enlarging the image, the personal details, address, telephone contacts, diagnosis, and the date of the two swabs that yielded negative results are still readable.

Subsequently, the Office, with note of XX, prot. XX, invited the Municipality to provide any useful information regarding the above-represented matter, pursuant to Article 157 of the Code. As no response was received, the request for information to the Municipality was reiterated with note of XX, prot. XX, which also went unanswered by the Municipality.

Considering that, during the investigation, it was also noted that the communication of the contact details of the Data Protection Officer (hereinafter, "DPO") had not been received by the Authority with the aforementioned note of XX, the Office invited the said Municipality to make such communication through the appropriate procedure available at the web page <https://servizi.gdpd.it/comunicazionerpd/s/>. In this regard, a similar request had already been sent to the aforementioned Municipality with the note of X, prot. XX, as part of a broader verification concerning the communications of the contact details of DPOs made by public entities using the aforementioned procedure.

With reference to the conduct of the Municipality of XX, the Office, based on the elements acquired, the checks carried out, and the facts emerged following the investigative activity, notified the Municipality, on date XX (prot. X) pursuant to Article 166, paragraph 5, of the Code, of the initiation of the procedure for the adoption

of the measures referred to in Article 58, paragraph 2, of the Regulation in relation to the following violations, for having acted: in a manner not compliant with the principles of lawfulness, fairness, and transparency and, therefore, in violation of Articles 5, paragraph 1, letter a) and 6, paragraph 1, letters c) and e), and 9 of the Regulation, and of Articles 2-ter, 2-sexies and 2-septies, paragraph 8 of the Code (as in force at the time of the facts, in the text prior to the amendments made by Decree-Law No. 139 of October 8, 2021, converted, with amendments, by Law No. 205 of December 3, 2021) with reference to the online dissemination of posts containing personal data,

****Personal Data and Contact Information, as well as Health-Related Data, in the Absence of an Appropriate Legal Basis and in Violation of an Express Prohibition; in Violation of Article 157 of the Code, in Relation to the Lack of Response to the Request for Information Made by the Office with Note of XX, Prot. X, Reiterated with Note of XX, Prot. XX; in Violation of Article 37, Paragraphs 1, Letter a), and 7 of the Regulation, in Relation to the Failure to Appoint the Data Protection Officer, and Consequently, the Omission of Communication of Contact Data to the Authority.****

The Municipality, with the aforementioned act, was invited to submit defensive writings or documents to the Guarantor or to request to be heard by the Authority (Article 166, Paragraphs 6 and 7, of the Code, as well as Article 18, Paragraph 1, of Law No. 689 of November 24, 1981). Following the aforementioned notification, the said Municipality did not submit defensive memoranda, nor did it request to be heard. The Municipality, however, did transmit, albeit late, to the Authority the communication regarding the contact details of the Data Protection Officer (XX, Prot. RPD No. XX).

****3. Outcome of the Investigative Activity****

****3.1. Legislation on Personal Data Protection.****

The processing of personal data must occur in compliance with the applicable legislation on personal data protection and, in particular, with the provisions of the Regulation and the Code.

For "personal data," it is understood as "any information relating to an identified or identifiable natural person ('data subject')." Furthermore, "an identifiable natural person is one who can be identified, directly or indirectly, particularly by reference to an identifier such as a name, an identification number, location data, an online identifier, or one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person" (Article 4, Paragraph 1, No. 1, of the Regulation).

Regarding special categories of data, these are considered to be "personal data revealing racial or ethnic origin, political opinions, religious or philosophical beliefs, or trade union membership, as well as [...] genetic data, biometric data intended to uniquely identify a natural person, data concerning health or the sexual life or sexual orientation of a person" (Article 9, Paragraph 1, of the Regulation).

Additionally, with particular reference to the case brought to the attention of this Authority, it is noted that the operation of "dissemination" of personal data – that is, "making personal data known to indefinite subjects, in any form, including by making them available or consulting them" (Article 2-ter, Paragraph 4, Letter b) of the Code) – processed for the execution of a task carried out in the public interest or related to the exercise of public powers, is permitted only when provided for by a legal norm or, in cases provided for by law, by regulation (Article 2-ter, Paragraph 3, of the Code, in the text prior to the amendments made by the aforementioned Legislative Decree No. 139 of October 8, 2021, converted, with modifications, by Law No. 205 of December 3, 2021) and always in compliance with the principles regarding personal data protection, among which are the principles of "lawfulness, fairness, and transparency" (Article 5, Paragraph 1, Letter a), of the Regulation), according to which data must be "processed lawfully, fairly, and transparently in relation to the data subject."

****3.2. Online Dissemination of Personal Data and Special Categories of Data.****

From the assessment carried out based on the elements acquired and the facts emerged during the investigative activity, it was found that the Municipality has disseminated personal data and contact information, as well as health-related data, by publishing on its Facebook page (URL: <https://...>), the posts of XX (map of residences of positive subjects or in isolation, see URL <https://...>), of XX (screenshot of the email from the ASL with the results of the tests carried out on "XX," see: <https://...>), of XX (ASL note containing the negative result of the test related to a subject whose address and gender are indicated, see URL <https://...>) and of XX (ASL note regarding the discharge of a patient, with personal data not adequately obscured; by enlarging the image, the personal details, address, phone contacts, diagnosis, and the date of the two tests that resulted negative can indeed be read, see URL <https://...>).

With particular reference to the context in question, it is highlighted that, even in the case of the publication of documentation in which the complete identifying data of the data subjects are not reported (for example, the map or the communication containing only the pointed initials, etc.), especially in territorial realities like that of the aforementioned Municipality, the data subjects may still be identifiable as they are correlated to residential addresses.

Additionally, from the checks carried out by the Office, the aforementioned posts are still published on the Municipality's Facebook page (documentation acquired in the records).

On this point, it is represented that the processing of personal data carried out by public entities is, as a rule, lawful only if necessary "to comply with a legal obligation to which the data controller is subject" or "for the performance of a task carried out in the public interest or related to the exercise of public powers vested in the data controller" (Article 6, Paragraph 1, Letters c) and e), of the Regulation). It is also provided that "Member States may maintain [...] more stringent provisions."

specifications for adapting the application of the rules of this regulation regarding processing, in accordance with paragraph 1, letters c) and e), determining more precisely specific requirements for processing and other measures aimed at ensuring lawful and fair processing [...]" (art. 6, par. 2, of the Regulation), with the consequence that in the specific case, under Italian law, art. 2-ter of the Code applies, in the text in force at the time of the facts (prior to the amendments made by the aforementioned d.l. of October 8, 2021, n. 139, converted, with modifications, by law December 3, 2021, n. 205).

In this context, public entities may disseminate personal data if such operation is provided for "by a legal norm or, in cases provided for by law, by regulation" (art. 2-ter, paragraphs 1 and 3, of the Code, in the text in force at the time of the facts).

The data controller, even in the presence of a condition of lawfulness, is, in any case, required to respect the principles set out in art. 5 of the Regulation, among which are the aforementioned principles of lawfulness, fairness, and transparency (art. 5, par. 1, lett. a), of the Regulation).

As for the processing concerning special categories of personal data referred to in article 9, par. 1, of the Regulation, necessary for reasons of significant public interest pursuant to par. 2, lett. g), of the same article, "are permitted if provided for by European Union law or, in domestic law, by legal provisions or, in cases provided for by law, by regulation that specify the types of data that may be processed, the operations that can be carried out, and the reason for significant public interest, as well as the appropriate and specific measures to safeguard the fundamental rights and interests of the data subject (art. 2-sexies, paragraph 1, of the Code, in the text in force at the time of the facts, prior to the amendments made by the aforementioned d.l. of October 8, 2021, n. 139, converted, with modifications, by law December 3, 2021, n. 205).

In any case, data relating to health, that is, those "related to the physical or mental health of a natural person, including the provision of health care services, revealing information related to their health status" (art. 4, paragraph 1, n. 15 of the Regulation), due to the greater guarantees recognized by the Regulation and the Code, given the particular sensitivity of this category of data, it is expressly provided that "they may not be disseminated" (art. 2-septies, paragraph 8, of the Code and art. 9, paragraph 4, of the Regulation).

Furthermore, regarding the emergency situation, it is highlighted that, in the context of managing the state of emergency related to the COVID-19 epidemic, declared by the Council of Ministers on January 31, 2020, numerous provisions have been adopted that involve the processing of personal data. These provisions provide, on the one hand, that public administrations may carry out the processing of personal data that is necessary for the performance of the functions assigned to them in the context of the emergency caused by the spread of Covid-19, and on the other hand, that the necessary measures are adopted to ensure compliance with the current regulations on personal data protection and, in particular, the principles applicable to processing, as set out in art. 5 of the Regulation (see art. 5 of the ordinance of the Head of the Department of Civil Protection of February 3, 2020, n. 630; art. 17 bis of the decree-law of March 17, 2020, n. 18, converted with modifications, by law April 24, 2020, n. 27).

As already highlighted, the current regulations prohibit the dissemination of health-related data, and this prohibition has not been derogated by the emergency legislation on Covid-19 (art. 9 of the Regulation; arts. 2-septies, paragraph 8, of the Code and 166, paragraph 2 of the Code; art. 14 of the decree-law of March 9, 2020, n. 14 and art. 17 bis of the aforementioned d.l. of March 17, 2020, n. 18, converted with modifications, by law April 24, 2020, n. 27). Such processing, besides being prohibited, in the context of managing the emergency adds to the risks for the data subjects and their families, in addition to the penalty for exposure to the disease, also that arising from an unacceptable dissemination of very sensitive aspects related to their private lives.

With specific reference to the dissemination on social media and in the press, including online, of personal data such as those mentioned above, the Authority has clarified that “even in an emergency situation such as the current one, in which information shows all its characteristics of an indispensable service for the community, certain guarantees for the protection of the privacy and dignity of individuals affected by the disease contained in the current regulations and in the ethical rules relating to journalistic activity cannot be disregarded” (Press release of March 31, 2020, at www.gpdp.it, doc. web n. 9303613).

In light of the considerations above, the processing of personal data carried out through the online dissemination of personal, demographic, and contact data, as well as health-related data, appears to have been conducted in violation of the regulations on personal data protection, as it was implemented in a manner not compliant with the “principle of lawfulness, fairness, and transparency” and in the absence of a legal basis, in violation of arts. 5, par. 1, lett. a), 6, par. 1, lett. c) and e), and 9 of the Regulation, as well as arts. 2-ter, 2-sexies, and 2-septies, par. 8 of the Code (in the text in force at the time of the facts, prior to the amendments made by the d.l. of October 8, 2021, n. 139, converted, with modifications, by law December 3, 2021, n. 205).

3.3. The failure to respond to the request for information from the Authority, pursuant to art. 157 of the Code.

With regard to the dispute concerning the failure to respond within the terms of the request for information from the Office of XX (prot. no. XX), reiterated with note of XX (prot. no. XX), it is generally represented that the Supervisory Authority, within the scope of the tasks and powers conferred by the Regulation, ensures, among other things, the application of the Regulation and carries out the appropriate investigations, including on the correct application of data protection rules by the data controllers (art. 57 par. 1, lett. a), f) and h) and 58 of the Regulation). For this purpose, the Authority has the power to order the data controller to provide any information necessary for the performance of its tasks (art. 58 par. 1, lett. a), of the Regulation).

It is also highlighted that art. 157 of the Code provides that “within the powers referred to in article 58 of the Regulation, and for the performance of its tasks, the Guarantor may request the data controller, the processor, the representative of the controller or the processor, the data subject or even third parties to provide information and to exhibit documents also with reference to the content of databases,” and that non-compliance with this provision makes the administrative pecuniary sanction provided for by art. 83, par. 5 of the Regulation applicable (art. 166, paragraph 2 of the Code).

In this regard, it is noted that, also in light of the general principles of good administration, efficiency,

effectiveness, and economy of administrative action (art. 97 of the Constitution, as well as art. 9, paragraph 1 and 10, paragraph 3, of the internal Regulation of the Guarantor no. 1/2019 of April 4, 2019, web doc no. 9107633), no response has been received to the request for information from the Office of XX (prot. no. XX), reiterated with note of XX (prot. no. XX) – not even after the initiation of the procedure for the adoption of corrective and sanctioning measures of XX (prot. XX) – thus confirming the violation of art. 157 of the Code.

3.3. The failure to communicate the contact details of the Data Protection Officer, pursuant to art. 37 of the Regulation.

In relation, however, to the obligations concerning the Data Protection Officer provided for by art. 37 of the Regulation, the Municipality communicated the relevant contact details to the Guarantor, through the appropriate procedure, only on XX (prot. RPD no. XX), thus only after the dispute raised by the Office.

On this point, art. 37, par. 1, lett. a), of the Regulation provides the obligation for every public authority or public body that processes personal data to appoint such a figure. Furthermore, par. 7 of the same art. 37 requires the obligation to communicate to the Supervisory Authority the contact details of the aforementioned DPO.

In this regard, it is noted that the Municipality has complied with a significant delay with the obligation provided for by art. 37, par. 7, of the Regulation, which became mandatory on May 25, 2018, the date on which the Regulation became applicable.

It is acknowledged that the entity has taken steps to remedy the irregular situation by communicating the contact details to the Guarantor, although only at a later time than the dispute raised by the Office.

4. Conclusions.

In light of the evaluations mentioned above and considering the circumstance that the Municipality of XX has not submitted any defensive writings or documents, nor has it requested to be heard by the Authority, the observations notified by the Office with the initiation of the procedure cannot be considered overcome, nor can the present procedure be archived, as none of the cases provided for by art. 11 of the Guarantor's Regulation no. 1/2019 apply.

Therefore, the preliminary evaluations of the Office are confirmed, and the illegality of the processing of personal data carried out by the Municipality of XX is noted, for having processed personal data in violation of arts. 5, par. 1, lett. a), 6, par. 1 lett. c) and e), 9 and 37, par. 7 of the Regulation, and of arts. 2-ter, 2-sexies, 2-septies, par. 8 and 157 of the Code (in the text prior to the amendments made by the decree-law of October 8, 2021, no. 139, converted, with amendments, by law of December 3, 2021, no. 205).

The violation of the aforementioned provisions makes the administrative sanction provided for by art. 83, pars. 4 and 5, of the Regulation applicable, pursuant to arts. 58, par. 2, lett. i), and 83, par. 3, of the same Regulation, as also recalled by art. 166, paragraph 2, of the Code.

5. Corrective measures (art. 58, par. 2, lett. d), of the Regulation).

Art. 58, par. 2, of the Regulation grants the Guarantor the power to “order the data controller or the data processor to bring the processing into compliance with the provisions of this regulation, if necessary, in a specific manner and within a specific time frame” (lett. d).

Taking note of what emerged during the investigation phase and considering the circumstance that the posts of XX (URL: <https://...>), XX (URL: <https://...>), XX (URL: <https://...>) and XX (URL: <https://...>), containing personal data inadequately or incompletely obscured, are still published on the Facebook page of the Municipality of XX (<https://...>), it is also necessary, pursuant to art. 58, par. 2, lett. d), of the Regulation, to order the Municipality to cease the further dissemination of the personal data published on the aforementioned Facebook page at the above URLs.

Pursuant to arts. 58, par. 1, lett. a), of the Regulation and 157 of the Code, the Municipality must also communicate to this Authority, providing adequately documented feedback, within thirty days from the notification of this.

measure, which must be considered separately for the purpose of quantifying the administrative sanctions to be applied.

6.2 The conduct referred to in the previous paragraph 3.3.

The violation of Article 157 of the Code, mentioned in the previous paragraph 3.3, due to the failure to respond to the requests for information made by the Authority against the Municipality, has, on the other hand, occurred as a result of a further unique conduct.

In this case, the Municipality of XX did not provide the requested information within the established deadlines, which constitutes a breach of the obligations set forth in the aforementioned article. According to Article 83, paragraph 4, of the Regulation, the administrative fine for this type of violation can be imposed up to a maximum of €10,000,000.00 (ten million/00) or, in the case of an undertaking, up to 2% of the total worldwide annual turnover of the preceding financial year, whichever is higher.

Considering the circumstances of the case, including the nature of the violation and the lack of previous infringements by the Municipality, it is deemed appropriate to impose a fine of €1,500 (one thousand five hundred) for this specific violation, which is considered effective, proportionate, and dissuasive in accordance with Article 83, paragraph 1, of the Regulation.

7. Conclusion

In light of the above, the total administrative fine imposed on the Municipality of XX amounts to €4,500 (four thousand five hundred), which is the sum of the fines determined for the violations described in paragraphs 6.1 and 6.2. This amount is considered appropriate given the specific circumstances of the case, the nature of the violations, and the need to ensure compliance with data protection regulations.

The Municipality is hereby ordered to pay the total amount of the administrative fine within 30 days from the notification of this decision. Failure to comply with this order may result in further legal action, including the possibility of enforcement measures.

This decision is subject to appeal in accordance with the applicable legal provisions.

Date: [Insert Date]

Authority: [Insert Authority Name]

Signature: [Insert Signature]

conduct, in violation of a single regulatory provision. Considering that, in this case, the aforementioned violation is subject to the administrative sanction provided for by Article 83, paragraph 5, of the Regulation, as referenced by Article 166, paragraph 2, of the Code, the total amount of the sanction falls within the measure up to €20,000,000.00 (twenty million/00).

With specific regard to the nature and severity of the violation (Article 83, paragraph 2, letter a), of the Regulation), it must be considered that the Municipality has not provided any feedback during the entire investigative phase conducted by the Authority, despite the reminder note sent by the Authority itself and the subsequent communication initiating the procedure.

In light of these circumstances, it is believed that, in this case, the level of severity of the violation committed by the data controller is medium (cf. European Data Protection Board, “Guidelines 04/2022 on the calculation of administrative fines under the GDPR” of May 23, 2023, point 60).

That said, the aforementioned dimensional characteristics of the controller and the absence of previous relevant violations committed by the data controller or previous measures under Article 58 of the Regulation must be considered favorably towards the controller.

By reason of the aforementioned elements, assessed as a whole, it is deemed appropriate to determine the amount of the monetary sanction at €2,000 (two thousand) for the violation of Article 157 of the Code, as an administrative pecuniary sanction deemed, pursuant to Article 83, paragraph 1, of the Regulation, effective, proportionate, and dissuasive.

6.3 The conduct referred to in the previous paragraph 3.4.

The violation of Article 37, paragraph 7 of the Regulation, mentioned in the previous paragraph 3.4, due to the failure to communicate the contact details of the Data Protection Officer to the Authority, occurred as a result of another single conduct, in violation of a single regulatory provision. Considering that, in this case, the aforementioned violation is subject to the administrative sanction provided for by Article 83, paragraph 4, of the Regulation, as also referenced by Article 166, paragraph 2, of the Code,

the total amount of the sanction falls within the measure up to €10,000,000.00 (ten million/00).

With specific regard to the nature and severity of the violation (Article 83, paragraph 2, letter a) of the Regulation), it must be considered that it persisted for a considerable period of time (until the end of XX, and despite reminder requests made by the Authority).

In light of these circumstances, it is believed that, in this case, the level of severity of the violation committed by the data controller is of medium degree (cf. European Data Protection Board, “Guidelines 04/2022 on the calculation of administrative fines under the GDPR” of May 23, 2023, point 60).

That said, the aforementioned dimensional characteristics of the controller and the absence of previous relevant violations committed by the data controller or previous measures under Article 58 of the Regulation must be considered favorably towards the controller.

By reason of the aforementioned elements, assessed as a whole, it is deemed appropriate to determine the amount of the monetary sanction at €1,000 (one thousand) for the violation of Article 37, paragraph 7 of the Regulation, as an administrative pecuniary sanction deemed, pursuant to Article 83, paragraph 1, of the Regulation, effective, proportionate, and dissuasive.

6.4 Additional assessments and accessory sanction of publication.

In light of the above and taking into account the particular dissemination capacity of the publication tool used by the Municipality (social network) as well as the behavior exhibited by it during the investigation, it is also believed that the accessory sanction of publication of this measure on the website of the Authority should be applied, as provided for by Article 166, paragraph 7 of the Code and Article 16 of the Regulation of the Authority No. 1/2019.

It is finally noted that the conditions referred to in Article 17 of Regulation No. 1/2019 are met.

ALL OF THE ABOVE CONSIDERED, THE AUTHORITY

declares, pursuant to Article 57, paragraph 1, letter f), of the Regulation, the unlawfulness of the processing carried out by the Municipality of XX for violation of Articles 5, paragraph 1, letter a), 6, paragraph 1 letter c) and e), 9 and 37, paragraph 7 of the Regulation, and of Articles 2-ter, 2-sexies, 2-septies, paragraph 8 and 157 of the Code (in the text prior to the amendments made by Decree Law No. 139 of October 8, 2021, converted, with modifications, by Law No. 205 of December 3, 2021), in the terms specified in the reasoning;

ORDERS

pursuant to Articles 58, paragraph 2, letter i) and 83 of the Regulation, as well as Article 166 of the Code, the Municipality of XX, with registered office in XX, XX (CE) Tax Code XX, to pay the total sum of €6,000.00 (six thousand) as an administrative pecuniary sanction for the violations indicated in the reasoning.

It is represented that the offender, pursuant to Article 166, paragraph 8, of the Code, has the option to settle the dispute by payment, within 30 days, of an amount equal to half of the imposed sanction;

ORDERS

the Municipality of XX:

a) to pay the total sum of €6,000.00 (six thousand) in case of failure to settle the dispute pursuant to Article 166, paragraph 8, of the Code, according to the methods indicated in the annex, within thirty days from the notification of this

****Provision, under penalty of the adoption of the consequent executive acts in accordance with Article 27 of Law No. 689/1981;****

a) pursuant to Article 58, paragraph 2, letter d) of the Regulation, to cease the further dissemination of personal data published with the posts of XX, XX, X, and XX, currently accessible on the Facebook page related to the Municipality of XX, ..., respectively at the URLs <https://...>, <https://...>, <https://...>, <https://...>;

b) pursuant to Articles 58, paragraph 1, letter a), of the Regulation and 157 of the Code, to

communicate to this Authority, providing adequately documented feedback, within thirty days from the notification of this provision, the initiatives undertaken in order to implement the above orders pursuant to the cited Article 58, paragraph 2, letter d), as well as any measures taken to ensure compliance of the processing with the regulations on personal data protection.

****ORDERS****

the publication of this provision on the website of the Guarantor pursuant to Article 166, paragraph 7, of the Code (see Article 16 of the Guarantor's Regulation No. 1/2019);

the annotation of this provision in the internal register of the Authority, as provided for by Article 57, paragraph 1, letter u), of the Regulation, of violations and measures adopted in accordance with Article 58, paragraph 2, of the Regulation (see Article 17 of the Guarantor's Regulation No. 1/2019).

Pursuant to Articles 78 of the Regulation, 152 of the Code, and 10 of Legislative Decree No. 150/2011, an appeal against this provision may be filed before the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of communication of the provision itself or within sixty days if the appellant resides abroad.

Rome, January 24, 2024

****THE PRESIDENT****

Stanzione

****THE REPORTER****

Cerrina Feroni

****THE SECRETARY GENERAL****

Mattei